

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #10	CCRB Case #: 201600795	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/22/2016 9:05 PM	Location of Incident: East Tremont Avenue and East 176th Street and the 48th Precinct stationhouse	18 Mo. SOL 7/22/2017	Precinct: 48		
Date/Time CV Reported Fri, 01/22/2016 10:17 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/29/2016 12:28 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Steigman	24208	933387	048 PCT
2. SGT Lauren Diaz	04807	941658	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Stephen Steigman	Abuse: At East Tremont Avenue and East 176th Street, Police Officer Stephen Steigman drew his gun.	A . Exonerated
B . SGT Lauren Diaz	Abuse: At East Tremont Avenue and East 176th Street, Sergeant Lauren Diaz drew her gun.	B . Exonerated
C . POM Stephen Steigman	Force: At East Tremont Avenue and East 176th Street, Police Officer Stephen Steigman used physical force against § 87(2)(b)	C . Unfounded
D . POM Stephen Steigman	Discourtesy: At East Tremont Avenue and East 176th Street in the Bronx, Police Officer Stephen Steigman acted discourteously toward § 87(2)(b)	D . Unfounded
E . SGT Lauren Diaz	Abuse: At East Tremont Avenue and East 176th Street in the Bronx, Sergeant Lauren Diaz threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . POM Stephen Steigman	Abuse: At East Tremont Avenue and East 176th Street in the Bronx, Police Officer Stephen Steigman searched the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated
G . POM Stephen Steigman	Abuse: At East Tremont Avenue and East 176th Street in the Bronx, Police Officer Stephen Steigman searched § 87(2)(b)'s bag.	G . Exonerated
H . POM Stephen Steigman	Abuse: At East Tremont Avenue and East 176th Street in the Bronx, Police Officer Stephen Steigman threatened § 87(2)(b) with the use of force.	H . Unfounded
I . SGT Lauren Diaz	Abuse: At the 48 Precinct stationhouse, Sgt. Lauren Diaz refused to provide her shield number to § 87(2)(b)	I . Unfounded

Case Summary

On January 22, 2016, § 87(2)(b) filed the following complaint with IAB. On January 29, 2016, this complaint was received at the CCRB. On January 22, 2016, at approximately 9:05 p.m., § 87(2)(b) was pulled over at the intersection of East Tremont Avenue and East 176th Street by Sgt. Lauren Diaz and PO Stephen Steigman of the 48th Precinct. Sgt. Diaz and PO Steigman allegedly approached § 87(2)(b)'s vehicle with their guns drawn (**Allegations A and B**). PO Steigman allegedly opened § 87(2)(b)'s driver side door and grabbed § 87(2)(b) by her shoulder and thigh and attempted to pull her out of the vehicle (**Allegation C**). § 87(2)(b) stated that she cried out, "Help! Help! He's trying to kill me." PO Steigman allegedly placed his hand over § 87(2)(b)'s mouth to stop her screaming (**Allegation D**). PO Steigman was not able to pull § 87(2)(b) out of the vehicle because her seatbelt was strapped in. Sgt. Diaz allegedly told PO Steigman, "Take her out. Lay her on the curb" which § 87(2)(b) believed was a threat to kill her (**Allegation E**). PO Steigman asked § 87(2)(b) for her license and registration. § 87(2)(b) stated that her documents were in her purse, which was in the back seat where she could not reach. PO Steigman retrieved the purse from the back seat (**Allegation F**) and allegedly opened and searched the purse (**Allegation G**). The purse was handed to § 87(2)(b) who retrieved her license and registration and provided them to PO Steigman. § 87(2)(b) was issued a summons for using a cell phone while driving (**Board Review 1**). PO Steigman allegedly told § 87(2)(b) "If I have to come back. I'm going to lay you on the ground" which § 87(2)(b) interpreted as another threat to kill her (**Allegation H**). § 87(2)(b) was then released from the scene. § 87(2)(b) went to the 48th Precinct stationhouse where she encountered PO Steigman and Sgt. Diaz again. PO Steigman provided his name and shield number to § 87(2)(b). Sgt. Diaz allegedly refused to provide her shield number to § 87(2)(b) (**Allegation I**). § 87(2)(b) left the stationhouse and filed a complaint by phone with IAB.

There was no video of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint § 87(2)(b).
- As of March 10, 2016, an enquiry to the Office of the New York City Comptroller indicated that no notice of claim has been filed for this incident (**Board Review 2**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two previous CCRB complaints. § 87(2)(b)
- Sgt. Diaz has had three other complaints involving five allegations made against her in her 9 year tenure at the NYPD. None of the allegations were substantiated § 87(2)(g) (**Board Review 5**).

- PO Steigman has had four other complaints involving seven allegations made against him in his 12 year tenure at the NYPD. None of the allegations were substantiated § 87(2)(g) (Board Review 6)

Findings and Recommendations

Allegations not Pleaded

- **Refusal to Process complaint** – § 87(2)(b) stated in her call to 911 that officers at the 48th Precinct stationhouse refused to take her complaint against Sgt. Diaz and PO Steigman. In her CCRB statement (Board Review 7), § 87(2)(b) stated that while at the 48th Precinct stationhouse, Sgt. Diaz offered her a complaint form when she requested it, but § 87(2)(b) did not trust that Sgt. Diaz would faithfully process the complaint if she filled out the complaint form. § 87(2)(b) stated that Sgt. Diaz then offered to allow § 87(2)(b) to fill out the complaint form and place it inside a mailbox for complaint forms, but § 87(2)(b) believed Sgt. Diaz would rip up the form afterwards. Sgt. Diaz then informed § 87(2)(b) how to file a complaint by phone, which is how § 87(2)(b) ultimately chose to file this complaint. § 87(2)(g)

Explanation of Subject Officer Identification

- Sgt. Diaz and PO Steigman acknowledged interacting with § 87(2)(b)

Allegation A – Abuse of Authority: At East Tremont Avenue and East 176th Street, PO Stephen Steigman drew his gun.

Allegation B – Abuse of Authority: At East Tremont Avenue and East 176th Street, Sgt. Lauren Diaz drew her gun.

§ 87(2)(g) § 87(2)(g)
 § 87(2)(b) alleged in her CCRB statement that PO Steigman and Sgt. Diaz had their guns drawn as they approached her vehicle, and they holstered their guns upon reaching the front of her vehicle. Sgt. Diaz and PO Steigman both denied that either of them had their guns drawn at any time during this incident.

In PD v. Gliner, OATH Index No. 955/00 (2000) (Board Review 10), the police department granted officers broad discretion to draw their firearms to ensure personal safety, and provided that due deference should be given to the judgment of the officer at the time and scene of the incident.

§ 87(2)(g)
 § 87(2)(g)
 § 87(2)(g)
 § 87(2)(g)
 § 87(2)(g). It is therefore recommended that
Allegations A and B be closed as Exonerated.

Allegation C – Force: At East Tremont Avenue and East 176th Street in the Bronx, PO Stephen Steigman used physical force against § 87(2)(b)

Allegation D – Discourtesy: At East Tremont Avenue and East 176th Street in the Bronx, PO Stephen Steigman acted discourteously toward § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that when PO Steigman walked up to § 87(2)(b)'s driver-side door, he opened the door and grabbed § 87(2)(b) by the thigh and shoulder, attempting to pull her out of the vehicle. § 87(2)(b) denied that PO Steigman had said anything to her before or during this. § 87(2)(b) stated she screamed, "Help! Help! He's trying to kill me!" PO Steigman allegedly put his hand over § 87(2)(b)'s mouth. PO Steigman did not succeed in pulling § 87(2)(b) out of the vehicle because she was held back by her seatbelt. In her call to 911 to file this complaint, § 87(2)(b) did not mention PO Steigman attempting to pull her out of the vehicle or covering her mouth, instead § 87(2)(b) mostly complained that officers had ordered her to lower both of her vehicle windows (**Board Review 8**).

PO Steigman and Sgt. Diaz both denied that PO Steigman opened § 87(2)(b)'s door, denied that he attempted to pull § 87(2)(b) out of the vehicle and denied that there was any reason to take § 87(2)(b) out of the vehicle. They also denied that § 87(2)(b) screamed and denied that PO Steigman put his hand over § 87(2)(b)'s mouth. They were both consistent in stating that when they first approached § 87(2)(b)'s vehicle, § 87(2)(b) refused to lower her windows and both officers repeatedly told her to lower her windows, which § 87(2)(b) did reluctantly. At no point did they open § 87(2)(b)'s driver's side door.

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations C** and **D** be closed as **Unfounded**.

Allegation E – Abuse of Authority: At East Tremont Avenue and East 176th Street in the Bronx, Sgt. Lauren Diaz threatened § 87(2)(b) with the use of force.

§ 87(2)(g) § 87(2)(b) alleged that as PO Steigman attempted to pull § 87(2)(b) out of the vehicle, Sgt. Diaz was on the other side of the vehicle urging PO Steigman to "Take her § 87(2)(b) out. Lay her on the curb." § 87(2)(b) interpreted Sgt. Diaz's order as an instruction to kill her. PO Steigman and Sgt. Diaz both denied that Sgt. Diaz uttered any threat of force against § 87(2)(b). They also both denied that they wanted to remove § 87(2)(b) from the vehicle.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation F – Abuse of Authority: At East Tremont Avenue and East 176th Street in the Bronx, PO Stephen Steigman searched the vehicle in which § 87(2)(b) was an occupant.
Allegation G – Abuse of Authority: At East Tremont Avenue and East 176th Street in the Bronx, PO Stephen Steigman searched § 87(2)(b) s bag.

It is not in dispute that PO Steigman reached inside § 87(2)(b) s vehicle and retrieved her purse. § 87(2)(g)

§ 87(2)(b) Sgt. Diaz and PO Steigman’s testimonies were all consistent that § 87(2)(b) told PO Steigman that her driver’s license, insurance and registration were in her purse, which was in her backseat and she could not reach her purse. § 87(2)(b) stated that she told PO Steigman, “If you want to, you could just open the zipper up and see there’s nothing in there.” (Board Review 7) § 87(2)(b) Sgt. Diaz and PO Steigman all did not claim that either officer asked for permission to search the purse or expressed any intention to search the purse. PO Steigman and Sgt. Diaz both denied that the purse was opened or searched by them. According to Sgt. Diaz and PO Steigman, § 87(2)(b) lowered the rear driver’s side window and PO Steigman reached through the open window into the backseat retrieving § 87(2)(b) s purse, then he immediately handed the purse to § 87(2)(b) without opening or searching it.

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations F and G** be closed as **Exonerated**.

Allegation H – Abuse of Authority: At East Tremont Avenue and East 176th Street in the Bronx, PO Stephen Steigman threatened § 87(2)(b) with the use of force.

During her CCRB interview, § 87(2)(b) claimed that she called 911 while she sat in her vehicle waiting for Sgt. Diaz and PO Steigman to return and issue her a summons. When PO Steigman and Sgt. Diaz returned, PO Steigman ordered § 87(2)(b) to roll down her windows. § 87(2)(b) asked the 911 operator whether she heard PO Steigman and the operator stated that PO Steigman was behaving too aggressively. § 87(2)(b) stated that she put PO Steigman on the phone with the 911 operator who asked PO Steigman whether § 87(2)(b) was under arrest. She claimed PO Steigman told the 911 operator that § 87(2)(b) was not under arrest. § 87(2)(b) alleged that PO Steigman told § 87(2)(b) “If I have to come back, I’m going to lay you on the ground” which § 87(2)(b) interpreted as a threat to kill her. § 87(2)(b) claimed that the 911 operator heard this and urged § 87(2)(b) to cooperate and warned that the officers would fabricate a reason to arrest her.

PO Steigman and Sgt. Diaz both consistently stated that when they returned to § 87(2)(b) s vehicle with a summons, § 87(2)(b) refused to lower her windows again. After repeated requests, § 87(2)(b) lowered her windows and accepted the summons. Neither PO Steigman nor Sgt. Diaz believed that § 87(2)(b) was on the phone with anyone at this time and they denied that they spoke to a 911 operator. Both officers denied that PO Steigman threatened § 87(2)(b) with force.

It was clear from the recording of § 87(2)(b)'s call to 911 that the call took place after § 87(2)(b)'s interaction with Sgt. Diaz and PO Steigman. § 87(2)(b) referred to the incident in the past tense, and at no point were Sgt. Diaz and PO Steigman's voices heard in the background during the call. § 87(2)(b) also mentioned that she had arrived home and was exiting her vehicle. The 911 operator did not speak to either officer nor did the 911 operator warn § 87(2)(b) that the officers were going to arrest her. When § 87(2)(b) was connected to the 911 operator, she complained that the officers had asked her to lower both her windows all the way down and asked whether police officers had the authority to do that. § 87(2)(b) also mentioned that she had already gone to the 48th Precinct and they had refused to take her complaint. The 911 operator asked § 87(2)(b) whether she wanted to make a compliant, and § 87(2)(b) responded that she did. The 911 operator then connected § 87(2)(b) to IAB (**Board Review 8**).

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Unfounded**.

Allegation I - Abuse of Authority: At the 48 Precinct stationhouse, Sgt. Lauren Diaz refused to provide her shield number to § 87(2)(b)

During her CCRB interview, § 87(2)(b) stated that she called 911 during the vehicle stop by Sgt. Diaz and PO Steigman. She stated she was then connected to PO Williams of IAB who spoke to her over the phone. § 87(2)(b) claimed that she was on the phone with PO Williams when she entered the 48th Precinct stationhouse and that PO Williams remained on the phone with her throughout her interaction with Sgt. Diaz at the stationhouse. § 87(2)(b) stated that PO Williams urged § 87(2)(b) to ask the officers for their information, and that when she asked Sgt. Diaz for her shield number, Sgt. Diaz responded by saying that she did not have to provide her shield number. § 87(2)(b) then spoke into the phone and asked PO Williams whether he had heard Sgt. Diaz's refusal to provide her information and PO Williams stated that he did.

Sgt. Diaz stated that when § 87(2)(b) asked her for her shield number, she provided it to her verbally. Both Sgt. Diaz and PO Steigman did not see § 87(2)(b) use a cell phone while inside the 48th Precinct stationhouse.

It is clear from both the recordings of § 87(2)(b)'s call to 911 (**Board Review 8**) and to the IAB command center (**Board Review 9**) that § 87(2)(b) called 911 after she had left the stationhouse and was then connected to PO Williams at the IAB command center. In the recording, § 87(2)(b) referred to the incident in the past tense and at no point did it appear that the incident was taking place during the phone calls. In § 87(2)(b)'s conversation with PO Williams at IAB, § 87(2)(b) stated that she wished she had called when the incident was still taking place so that PO Williams could hear the interaction. Further, § 87(2)(b) never mentioned that Sgt. Diaz had refused to provide her name or shield number to PO Williams.

§ 87(2)(g)

_____. It is therefore recommended that **Allegation I** be closed as **Unfounded**.

Squad: 10

Investigator:	_____	<u>Simon Wang</u>	<u>04/15/16</u>
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date